

[Session Name]

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eBundle Demo Case

Exported By Anikit Sharma

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Q fact

Page	Source Text	Note	Issues
4	been updated very recently. I don"t know if your Lordship has that last -- HIS HONOUR: No. What"s come in recently in bundle {E4}? MR...	been updated very recently. I don't know if your Lordship has that last -- HIS HONOUR: No. What's come in recently i...	Bridge
1	, to remind the parties that I would like a copy of t	, to remind the parties that I would like a copy of t	Bridge
1	undles further on, which slightly ... (Pause) But they have just been divided up with tabs.	undles further on, which slightly ... (Pause) But they have just been divided up with tabs.	Bridge

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3	MR JONES: Protection, exactly. It"s all about what w	MR JONES: Protection, exactly. It's all about what w	Reading Doc
1	a copy of the chronology cross-referenced to the bundles. Also, I would like just a little help as t	a copy of the chronology cross-referenced to the bundles. Also, I would like just a little help as t	Reading Doc

01 11:00:04 {G2-4} {G2} {H2} P R O C E E D I N G S

02 11:00:05 (11.00 am)

03 11:00:08 HIS HONOUR: Thank you. Before we begin, can I just mention

04 11:00:10 two points.

05 11:00:14 First, to remind the parties that I would like

06 11:00:17 a copy of the chronology cross-referenced to the

07 11:00:18 bundles.

08 11:00:19 Also, I would like just a little help as to how the

09 11:00:24 bundles have been put together. They are certainly not

10 11:00:26 in chronological order; what order are they in?

11 11:00:27 MR JONES: It's a very good question, the sort of question

12 11:00:30 that I --

13 11:00:35 HIS HONOUR: The rules require a chronological bundle, and

14 11:00:40 it is quite difficult thinking -- well, I would like to

15 11:00:45 see the {A2-3} and {A3-4} to which that document is an

16 11:00:48 answer, and then you have to, by pure chance, go about

17 11:00:52 four bundles further on, which slightly ... (Pause)

18 11:00:53 But they have just been divided up with tabs.

19 11:00:58 MR JONES: I mean, one option is the parties assist you by

20 11:01:00 producing an agreed bundle -- hopefully when we have

21 11:01:05 done our written closings with reference in {A1-10} and

22 11:01:10 {A1-11}.

23 11:01:15 HIS HONOUR: I would be grateful. There was always a risk

24 11:01:17 anyway of seeing the document in two different places.

25 11:01:18 MR JONES: We'll secure that for you.

26 11:01:21 Could I ask your Honour, please, to take up the list
27 11:01:22 of issues. It can be found in {E2-34}.
28 11:01:25 In {B3-2}, there are two sets of lists of issues.
29 11:01:27 There's a case memorandum list of issues from the --
30 11:01:30 HIS HONOUR: The parties weren't able to agree on the list
31 11:01:35 of issues?
32 11:01:37 MR JONES: That's right, yes. Slightly --
33 11:01:42 HIS HONOUR: It's not unknown, Mr Jones.
34 11:01:43 MR JONES: The bank and the first defendant were able to
35 11:01:45 agree on what they thought were the list of issues.
36 11:01:47 HIS HONOUR: Of course. That goes without saying.
37 11:01:52 MR JONES: My learned friend took you to these yesterday in
38 11:01:53 relation to his submissions about the issue estoppel,
39 11:01:58 and made the point that the July 2003 dishonest
40 11:02:03 statement was not an issue.
41 11:02:05 I mean, that's absolutely right, because I'll
42 11:02:08 develop -- that's actually a point in our favour, but
43 11:02:11 perhaps, first of all, we could turn to {D2-12}.
44 11:02:12 HIS HONOUR: Yes.
45 11:02:13 MR JONES: This is within the claimant's list of issues,
46 11:02:16 just to see how narrowly focused the misrepresentation
47 11:02:18 issue in the 2001 trial was.
48 11:02:22 One can see that summarised at {A1-5}, and then in
49 11:02:25 the subparagraphs which go over the page.
50 11:02:29 It's very clear, just looking at what those issues

51 11:02:34 are, in terms of the representations made.

52 11:02:38 Starting at bundle {D1-9}, subparagraph 16.1.1:

53 11:02:43 "The claimant's capital would be protected and they

54 11:02:44 would not lose money ..."

55 11:02:47 In bundle {F1-5}:

56 11:02:49 "There was only a negligible chance the claimant's

57 11:02:51 capital would fail to appreciate ..."

58 11:02:55 HIS HONOUR: Yes.

59 11:02:58 MR JONES: These are all pre-contractual representations.

60 11:02:59 They are very much focused at the early stage.

61 11:03:03 If one turns to the list of issues by the parties,

62 11:03:04 one can see at {B3-19}, and then forward to page 10, for

63 11:03:09 example, in relation to the misrepresentation claim,

64 11:03:14 they are all focused on, again, pre-contractual

65 11:03:16 representations which have been relied on in the

66 11:03:21 re-amended particulars of claim.

67 11:03:23 I think my learned friend took you to those at

68 11:03:24 {A3-4} and {B2-4}.

69 11:03:28 Unless you would like me to, I don't propose to take

70 11:03:33 you back to the claimant's re-amended particulars of

71 11:03:36 claim.

72 11:03:37 HIS HONOUR: It's the protection point.

73 11:03:40 MR JONES: Protection, exactly. It's all about what was

74 11:03:41 said to induce the claimant to enter into these

75 11:03:44 products.

76 11:03:45 Again, I'll develop this further, but this is the
77 11:03:47 only focus of attention in terms of agency at that
78 11:03:51 point -- again, subject to what happens.
79 11:03:55 If I could open {C1-5}.
80 11:03:56 HIS HONOUR: {C1-5}, yes, I'm up to date with that.
81 11:03:59 MR JONES: Perfect.
82 11:04:00 Bundle {E2} should now be {E1} -- well, it's
83 11:04:02 19 pages on the PDF, but the last page is 25, and that's
84 11:04:04 been updated very recently.
85 11:04:05 I don't know if your Lordship has that last --
86 11:04:10 HIS HONOUR: No. What's come in recently in bundle {E4}?
87 11:04:14 MR JONES: Certainly I received it this morning. There is
88 11:04:15 a clip of about 8 or 12 pages, an email exchange and
89 11:04:17 a letter from the claimant a couple of days ago.
90 11:04:22 It sounds like Mr David is with us.
91 11:04:27 MR DAVID: Hold on one second. I'm on my telephone with the
92 11:04:29 technical support.
93 11:04:31 They say, first of all, I have to get online on my
94 11:04:36 telephone, and then they will do some magic to ensure
95 11:04:39 that I get on on my laptop.
96 11:04:43 So just for the technical support chap, do I now
97 11:04:46 come off the link on my telephone?
98 11:04:48 (Pause).
99 11:04:50 MR JONES: I don't know if it would be convenient to finish
100 11:04:54 off the housekeeping. I don't think Mr David will

101 11:04:58 accuse me of leaving him out.

102 11:05:01 HIS HONOUR: Yes.

103 11:05:04 MR JONES: So the final page of bundle {E5} is numbered 95.